

SECTION B – CONTINUATION FROM SF-1449 (SCHEDULE OF SUPPLIES/SERVICES)**1.0 GENERAL**

The Department of Treasury’s Office of the Comptroller of the Currency (OCC), Office of Acquisition Management on behalf of the OCC’s Midsize and Community Bank Supervision (MCBS) is seeking Hotel Occupancy for Conferencing and Lodging (HOCL) support to host evaluators and test candidates for its Uniform Commission Examination (UCE) program. The solicitation is issued in accordance with FAR 12 for Acquisition of Commercial Products and Commercial Services under FAR 13.5 procedures for establishing a single-award contract. The Government will NOT be restricting this procurement to any specific business size or class. The Contractor shall, however, be registered in the System for Award Management (SAM) with the assertion of the North American Industry Classification System (NAICS) code 721110—*Hotels (except Casino Hotels) and Motels, noting a size standard of \$40M*. The coordinating Product Service Code (PSC) is V231—*Transportation / Travel / Relocation – Travel / Lodging / Recruitment: Lodging, Hotel / Motel*. The resulting contract shall be for a period not to exceed 5 years (60 months).

2.0 LINE ITEM NUMBERS (LINs)

The Contractor must furnish all supplies/materials, labor, equipment, facilities, and services except as specified herein to be furnished by the Government and must do all that which is necessary or incidental to the satisfactory and timely performance of the requirements.

The Contractor shall furnish all the following items required under a resulting contract at a firm-fixed-price (FFP) basis per the Price/Cost Schedule table below:

2.1 6-Month Base Period (May 1, 2026 through October 31, 2026)

LIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
0001	BIZ, AV TECH-EQUIP	1	JOB		
0002	FOOD & BEVERAGE	1	JOB		
0003	CONFERENCING (MEETING) & LODGING ROOMS	1	JOB		
0004	CONCESSIONS (OPTIONAL)	1	EA		
TOTAL COST FOR BP					

2.2 12-Month Option Period One (November 1, 2026 through October 31, 2027)

LIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
1001	BIZ, AV TECH-EQUIP	1	JOB		
1002	FOOD & BEVERAGE	1	JOB		
1003	CONFERENCING (MEETING) & LODGING ROOMS	1	JOB		

LIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
1004	CONCESSIONS (OPTIONAL)	1	EA		
TOTAL COST FOR OP1					

2.3 12-Month Option Period Two (November 1, 2027 through October 31, 2028)

LIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
2001	BIZ, AV TECH-EQUIP	1	JOB		
2002	FOOD & BEVERAGE	1	JOB		
2003	CONFERENCING (MEETING) & LODGING ROOMS	1	JOB		
2004	CONCESSIONS (OPTIONAL)	1	EA		
TOTAL COST FOR OP2					

2.4 12-Month Option Period Three (November 1, 2028 through October 31, 2029)

LIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
3001	BIZ, AV TECH-EQUIP	1	JOB		
3002	FOOD & BEVERAGE	1	JOB		
3003	CONFERENCING (MEETING) & LODGING ROOMS	1	JOB		
3004	CONCESSIONS (OPTIONAL)	1	EA		
TOTAL COST FOR OP3					

2.5 12-Month Option Period Four (November 1, 2029 through October 31, 2030)

LIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
4001	BIZ, AV TECH-EQUIP	1	JOB		
4002	FOOD & BEVERAGE	1	JOB		
4003	CONFERENCING (MEETING) & LODGING ROOMS	1	JOB		
4004	CONCESSIONS (OPTIONAL)	1	EA		
TOTAL COST FOR OP4					

2.6 6-Month Option Period Five (November 1, 2030 through April 30, 2033)

CLIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
5001	BIZ, AV TECH-EQUIP	1	JOB		

CLIN	Task Description	Qty	Unit/ Amount	Unit Price	Extended Price
5002	FOOD & BEVERAGE	1	JOB		
5003	CONFERENCING (MEETING) & LODGING ROOMS	1	JOB		
5004	CONCESSIONS (OPTIONAL)	1	EA		
TOTAL COST FOR OP5					
TOTAL COST FOR ALL PERIODS (BASE + OPTIONS)					

Note₁: Concession items under line items X004 will be negotiated and incorporated within the table at time of award

Note₂: Any concession items that are Not Separately Priced (NSP) will be notated as such, along with the quantities and terms.

3.0 BACKGROUND

The Office of the Comptroller of the Currency (OCC) is an independent bureau of the United States Department of Treasury. The Office of the Comptroller of the Currency (OCC) charters, regulates, and supervises national banks and federal savings associations and licenses, regulates, and supervises federal branches and agencies of foreign banking organizations. Headquartered in Washington, D.C., the OCC has offices in approximately 50 cities nationwide, with teams of examiners that work from more than 70 operating locations. Additional information on the OCC may be found here: [About | OCC \(treas.gov\)](https://www.treas.gov/about-us/offices-of-the-comptroller-of-the-currency/).

The OCC's mission is to ensure the institutions (which comprise the federal banking system) operate in a safe and sound manner, provide fair access to financial services, treat customers fairly, and comply with applicable laws and regulations. To do so, the OCC has an established Uniform Commission Examination (UCE) program, which is commissioned by the Comptroller of the Currency to signify a National Bank Examiner (NBE) is qualified to lead examinations of national banks and thrift institutions, its affiliates, and bank service corporations. The UCE program is an OCC certification and credentialing program used to assess the skills and practical knowledge of potential NBEs.

4.0 DESCRIPTION OF SERVICES AND SUPPLIES

4.1 Scope

The Contractor must provide all resources necessary to accomplish the tasks and deliverables described in the statement of work (SOW) section of the resulting contract. The Contractor must provide all the facilities and services as delineated in the contract, at one hotel venue (same location for base period and all option periods), necessary to satisfactorily perform the requirements. The Contractor must provide sleeping rooms, meeting rooms, testing rooms, and administration rooms. All booking, scheduling, coordinating, confirming, and other communications are to be done through the Government's Contracting Officer's Representative (COR) or Designated Official. Additionally, the Contractor must provide food and beverage service (stations) for administration and testing rooms, audiovisual and technology equipment for administration and testing rooms, including power strip/outlet access for dedicated administration and testing rooms, dedicated high-speed wireless internet service for dedicated administration and testing rooms, and a dedicated color copier/scanner and shred bin (with associated secure disposal) for the dedicated administration room per the days and times identified within

Attachment B HOCL Meeting Rooms Schedule and Configuration Requirements.¹ Finally, the Contractor must provide a secured, year-round storage room at the hotel venue.

4.2 Period of Performance

This requirement consists of a 6-month base period, with four (4) 12-month and one (1) 6-month option periods. Additionally, an option to extend the term of the contract for up to 6 months may be required during or after the 5-year contract period (see FAR Clause 52.217-8 for details). All UCE Sessions must be held at the same hotel for the duration of the entire contract period, including the 6-month extension period.

4.3 Place of Performance

The UCE Sessions must be held within a 25-mile radius of the Dallas/Fort Worth, TX, international airport (DFW) or Chicago, IL O'Hare international airport (ORD). The primary place of performance will be at the Contractor's facility/property. The Contractor must provide Customer Service and Support for the duration of conferencing and lodging days and hours of Sundays through Fridays from 6:00 AM to 7:00 PM local time.

4.3.1 Applicable Wage Determination

Due to the local area set-aside (Dallas/Fort Worth, TX (DFW) or Chicago, IL (ORD); within a 25-mile radius of either international airport) for this requirement, no one wage determination can be referenced for this solicitation, and Quoters must retrieve and abide by any applicable wage rate determinations. FAR Clause 52.222-41 "Service Contract Labor Standards" is marked as applicable in FAR clause 52.212-5 "Contract Terms and Conditions Required to Implement Statutes or Executive Orders-Commercial Items" of this solicitation. Therefore, Quoters are encouraged to utilize the following link to determine the wage rate of applicable laborers, by state and county, for local areas used to support the resulting contract: <https://sam.gov/content/wage-determinations>

4.4 UCE Program Session Overview

The UCE Session runs approximately 5 days and always starts on a Monday. Testing candidates will arrive on various days throughout the week and stay for a minimum of one (1) night and an expected maximum of two (2) nights. Evaluators and administration staff will stay for a minimum of two (2) nights and an expected maximum of five (5) nights. The Contractor must allow for stays beyond the expected maximum in cases of inclement weather or emergencies declared by local or national authorities, that necessitate OCC's personnel staying longer.

The desired UCE Session dates for each of the anticipated periods of performance (base period (BP) and option periods one (OP1) through OP5) are as follows:

BP 2026	OP1 2027	OP2 2028	OP3 2029	OP4 2030	OP5 2031
	4/19/27 – 4/23/27	4/24/28 – 4/28/28	4/16/29 – 4/20/29	4/8/30 – 4/12/30	4/7/31 – 4/11/31
7/20/26 – 7/24/26	7/19/27 – 7/23/27	7/17/28 – 7/21/28	7/16/29 – 7/20/29	7/22/30 – 7/26/30	
10/26/26 – 10/30/26	10/25/27 – 10/29/27	10/23/28 – 10/27/28	10/22/29 – 10/26/29	10/21/30 – 10/25/30	

Note: Alternative dates may be substituted, as proposed by the Contractor, for any session if there is no availability for the desired week or month.

¹ All times stated in this statement of work are local time at the Contractor's lodging facility.

Each UCE Session must be cancelable at the OCC's discretion per **Attachment B HOCL Conference and Meeting Rooms Schedule and Configuration Requirements** and **Attachment C HOCL Lodging Rooms and Scheduling**, noting the following payment schedule based on cancellation timing:

Lodging Rooms

In the event of individual room or complete session cancellation, the OCC is not required to pay for any guest sleeping room canceled before 4:00 PM of the specified arrival day. The OCC will pay for one night of any room not canceled by 4:00 PM of the specified arrival day.

Meeting Rooms

90 days out - 0% of UCE session guaranteed minimum unit price for meeting and conference rooms.
60 days out - 25% of UCE session guaranteed minimum unit price for meeting and conference rooms.
30 days out - 75% of UCE session guaranteed minimum unit price for meeting and conference rooms.
<30 days out - 100% of UCE session guaranteed minimum unit price for meeting and conference rooms.

At the outset and conclusion of every UCE Session, the Contractor must provide the arrival and departure date of each reservation, and total number of room nights of each reservation in a Guest Room Confirmation Report and Guest Room Pickup Report respectively. Additionally, the Contractor must provide in the following reports:

Guest Room Confirmation Report

- Alphabetical listing of individuals, by last name, for which rooms are reserved;
- Confirmation number of each reservation; and
- Total number of room nights reserved by OCC

Guest Room Pickup Report

- Alphabetical listing of individuals, by last name, in the OCC block of rooms; and
- Total number of room nights picked up in the OCC block of rooms

4.5 Dedicated Administration, Conferencing/Meeting, and Testing Rooms Requirements

The Contractor must provide the following for 4 days of each UCE Session: one (1) dedicated room for event administration (fitting up to 10 people comfortably), up to three (3) individual candidate testing rooms (fitting up to 15 people with tables for laptops comfortably, as well as a Proctor with a supply table facing testing candidates), and up to fifteen (15) panel meeting rooms (fitting up to 5 people comfortably with a table(s) (long or round) supporting/seating three Evaluators, and a smaller table or desk supporting a Testing Candidate for interviewing). Additionally, the Contractor must provide at the start of each UCE Session (Mondays only 12:00 PM to 5:00 PM), one (1) evaluator meeting room (fitting up to 40 people comfortably, U-Shape preferred). The required testing and meeting rooms must encompass 10,000 square feet (+/- 1,000 square feet), and must have the ability to partition into individual rooms or be individual rooms (such as temporarily converted hotel sleeping rooms).

4.6 Food and Beverage Service for Dedicated Administration, Conferencing/Meeting, and Testing Rooms

The Contractor must provide beverage service to include caffeinated and decaffeinated coffee, hot water with assorted teas (including condiments e.g., sugar, sugar substitutes, creamers, dairy, and/or honey, and condiment kits e.g., stirrer), assorted soft drinks, and bottled water during the times outlined in **Attachment B HOCL Meeting Rooms Schedule and Configuration Requirements**. The Contractor may provide complimentary snacks and services.

The contracted hotel must provide beverages at the prices specified in its published banquet menus. The OCC has the right to purchase food and beverages by any unit categories published in the hotel's banquet menus. The Government COR/Designee will guarantee attendance or quantities for each meeting room rental function requiring food and/or beverage services at least 72 hours in advance of each session. The COR/Designee may also increase the guaranteed figure(s) within 72 hours of the session but cannot lower the guaranteed figure(s).

The COR/Designee has the right to order food and/or beverages at any time during the period of performance from the hotel. If the food and/or beverages are not available, OCC may use Vendors outside of the hotel.

4.7 Audiovisual and Technology Equipment for Dedicated Administration, Conferencing/Meeting, and Testing Rooms

The Contractor must provide audiovisual (AV) equipment, meeting support services, and business services to include:

- Control/Touch-panel for managing lighting, audio, and/or visual settings that is user-friendly and easily accessible.
- A high resolution (i.e., Ultra-High Definition) screen projector.
- A large projector screen that is smooth, and texture-free, to avoid pixel degradation or maintain image sharpness, e.g., tensioned fixed-frame screens, in matte white, gray, or Ambient Light Rejecting (ALR) materials.
- Dedicated, password protected, high-speed wireless internet access for the Administration, Testing, and Panel Meeting rooms.
- Running power strips/outlet drops in the Administration and Testing Rooms adjacent to each table.
- Microphone(s) and virtual chart or easel flip chart within the Evaluator Meeting room.
- A dedicated color copy machine with scan-to-USB capability, along with toner and paper, in the Administration Room for the duration of each UCE Session. The Contractor may lease this equipment or provide contractor-owned equipment. It must be in 'like-new' working condition and dedicated only for the OCC's use for the duration of each UCE Session.
- Secure paper shredding and destruction services. The Contractor may subcontract for this service or provide contractor-owned equipment. It must be dedicated only for the OCC's use for the duration of each session

The COR/Designee has the right to order audiovisual and technology equipment (inclusive of labor) from a Vendor of its choice. However, if the COR/Designee decides to use the hotel or a Vendor with which the hotel has subcontracted, the following terms apply: the contracted hotel must 1) provide audiovisual equipment, labor, and business center services at the prices specified in its published price lists, as to be incorporated into the contract; 2) be responsible for indemnification terms between the hotel and its Vendor for the session period of setup to teardown; 3) inspect and accept the Vendor proof of insurance, as well as its adherence to safety standards; and 4) ensure the Vendor follows security protocols to prevent unauthorized access, potentially through limitations on connecting outside equipment to the hotel's systems.

The COR/Designee will provide specific audiovisual and technology requirements at least 14 days in advance of the start date of the UCE Session.

4.8 Storage Room Requirements

The Contractor must provide a storage room, of at least 200 square feet in size, to store the OCC's equipment and materials 24 hours a day, 7 days a week for the contract duration (i.e., 5 years). The storage room must be secured by lock and key (or keycard) that is only accessible by authorized OCC staff and limited hotel venue staff in the event of maintenance needs or emergency, with a corresponding entry log denoting instances of entry not accompanied by OCC staff. Climate control (air conditioning/heat) for the storage room is not mandatory but preferred. However, the storage room must be indoors and dry, which may be an out-of-service guest room or similar, but must be easily accessible during each session.

The specific types of rooms, maximum number of attendees per room style, minimum square footage, configuration setup, room equipment and furnishings, and food-beverage service requirements are outlined in **Attachment B HOCL Meeting Rooms Schedule and Configuration Requirements**.

4.9 Lodging/Sleeping Room Requirements

The Contractor must have available a minimum of 210 lodging rooms per UCE Session week (i.e., Sunday through Friday) to be master billed. The total lodging rooms for the estimated 15 sessions will be 3,150 for the duration of the contract.

Contractor is responsible for maintaining the quality of rooms and services, and must provide to the OCC for acceptance, only those rooms or services that comply with the quality ratings, compliance and certification requirements listed below. The Contractor must maintain written documentation that rooms or services conform to the quality requirements and must furnish such information to the OCC when requested or required.

In cases of overbooking, the Contractor must give priority to OCC personnel over that of non-governmental guests.

4.10 Other Accommodations

The hotel venue must have on-premises amenities to include 24-hour front desk service or concierge, a/several restaurant(s) option(s) within a 5-minute walk from the testing room area, that serves breakfast, lunch, and dinner, and a fitness facility. Onsite restaurant menus and operating hours must be provided, in hardcopy or digital format, prior to each session (if changes occur). While not required, the option of a hotel venue offering a convenience store/snack bar for food and drink purchases is preferred.

5.0 GOVERNMENT AND CONTRACTOR RESPONSIBILITIES

5.1 Government –

- The OCC COR/Designee will contact the hotel POC to furnish a confirmed, anticipated guest occupancy list within 14 days prior to initial UCE Session check-in date.
- The OCC COR/Designee will review the hotel Contractor Guest Room Confirmation Report and Guest Room Pickup Report to confirm the information contained within at least 14 after the final UCE Session check-out date.
- The OCC COR/Designee will provide the guaranteed number of attendees or food and/or beverage quantities needed within 72 hours prior to initial UCE Session start date.
- The OCC COR/Designee will provide the room specific audiovisual and technology requirements within 14 days prior to initial UCE Session start date.

5.2 Contractor –

HOTEL COMPLIANCE AND CERTIFICATIONS

- The hotel shall be compliant with the Hotel and Motel Fire Safety Act of 1990 15 U.S.C. 2201 et seq, (Public Law 101-391), and must hold a Federal Emergency Management Agency (FEMA) [identification number](#).
- The hotel shall be compliant with Americans with Disabilities Act (ADA) of 1990, 42 U.S.C. Section 12101 et seq.

6.0 HOCL SUPPORT KEY PERSONNEL AND BACKUP

The Contractor must provide an onsite point of contact (POC), e.g., Convention Services Manager, Onsite Hotel Manager, and/or Event Manager, as well as a backup POC, to communicate with the OCC COR or Designee. These individuals must have: 1) a bachelor's degree in hospitality, tourism, business, marketing, or a related field of study (or education equivalency with 6 years of relevant experience); 2) at least 3 years of industry experience, strong large event planning, convention sales, and/or organizational skills; 3) proficiency in MS Office and hotel systems; and 4) the capability of working flexible hours. The Key Personnel person or persons must provide a signed non-disclosure agreement to the COR prior to obtaining any information or engaging with the COR on booking or scheduling rooms for the UCE Program Sessions.

7.0 HOCL DELIVERABLES

Timely submission of deliverables is essential to successfully completing this requirement. Schedules for deliverables are specified in the table below. All deliverables must be prepared and submitted by the Contractor to the COR or Designated Official according to the format, content, and schedule described in the chart below.

Ref. Sect.#	Deliverable Title	Frequency	Qty	Medium/ Format
Part II, Sect. B	Non-Disclosure Agreement	No later than 5 days after contract award/or at time of replacement(s)	N/A	Emailed in PDF
Part II, Sect. 2	Guest Room Confirmation Report	No later than 5 business days after receipt of rooming list from the COR and UCE Session end date	1	Emailed Report in PDF
Part II, Sect. 2	Guest Room Pickup Report	No later than 5 business days after receipt of pickup listing and UCE Session end date	1	Emailed Report in PDF
Part II, Sect. 4.2	Color Copier with Scan-to-USB Feature	Delivered to the dedicated Administration Room per each UCE Session from 10AM Monday through 8PM Thursday	1	Color Copier
Part II, Sect. 4.2	Shred Bin	Delivered to the dedicated Administration Room per each UCE Session from 10AM Monday through 8PM Thursday	1	Shred Bin
Part II, Sect. 4	Hotel Fire Safety Certification	At time of solicitation close and available upon request during the contract period	1	FEMA ID Number and/or Certificate in PDF

Ref. Sect.#	Deliverable Title	Frequency	Qty	Medium/ Format
Part II, Sect. 4	Hotel ADA Compliance	At time of solicitation close and available upon request during the contract period	1	Report or Checklist in PDF
Part II, Sect. 2	Cancellation Notice	Within 5 days of cancellation	1	Emailed Report in PDF
Part II, Sect. 1.3	Destruction Certificate	Within 5 business days of destruction request	1	Emailed Certificate in PDF (Attachment I)

8.0 TRAVEL

Travel is not anticipated under the contract. Therefore, reimbursement of Contractor travel is not authorized.

9.0 SECTION 508 ELECTRONIC AND INFORMATION TECHNOLOGY STANDARDS

The Contractor must comply with Section 508 of the Rehabilitation Act (29 U.S.C. 794d) as amended by the Workforce Investment Act of 1998 (P.L. 105-220). See OCC Clause 1052.239-8000 Information and Communication Technology (ICT) Accessibility (JAN 2023) for details.

The Contractor must provide Section 508-compliant Information and Communication Technology (ICT), as well as adhere to the OCC's *Accessibility Best Practices Guide for Crafting 508-Compliant Word/PDF Documents* (Attachment H) when producing all electronic documents or reports for use by OCC users.

The Contractor must ensure all ICT and electronic documents, charts, tables, spreadsheets, presentation slides, diagrams, graphics, and/or videos that will be generated to be accessible to OCC's assistive technology tools for users and/or employees with visual, hearing, or motor manipulation accommodation needs. The OCC currently provides Job Access With Speech (JAWS) Versions 2025/2024/2023, ZoomText Versions 2025/2024/2023, and Dragon Professional Version 16 as approved assistive technology tools.

10.0 OCC SECURITY AND PRIVACY REQUIREMENTS

A. Compliance with Applicable Laws, Regulations, and Standards

Federal Laws. The contractor and all of its respective subcontractors shall follow and remain compliant at all times with the Federal Acquisition Regulation (FAR), Privacy Act of 1974 (5 U.S.C. 552a - the Act), Federal Information Security Modernization Act of 2014 (Public Law 107-347) (FISMA).

OCC Enterprise Cloud Secure Communication Standards. All user-to-cloud service communications must be encrypted with the latest OCC-approved browser protocol.

OCC Policies and Procedures. The OCC understands that there are limitations in applying agency-specific policies to systems and environments shared with other organizations or customers. The requirements in this OCC Policies and Procedures subsection applies to all activities specifically performed for the OCC by the contractor (e.g., professional services to develop or customize a component for the OCC). The intent of this section is to require contractor compliance with OCC policies and procedures for those activities, tasks, and deliverables specifically and uniquely performed and/or completed for the OCC by the contractor that is not a typical service or component of the existing

contractor system/solution. This section also applies to contractors with access and use of OCC information resources (i.e., OCC network, systems, laptops, other IT equipment, and/or OCC information). The Contractor and all of its respective subcontractors must comply with all Office of the Comptroller of the Currency (OCC) security and privacy policies and standards in effect at the time of the award of the contract, as well as those requirements that may be added during the contract.

The Contractor/service provider shall conform to OCC administrative regulations, policies, and procedures, as listed in section [cite corresponding location in contracting document], in accordance with applicable federal laws, Executive Orders, directives, policies, regulations, standards, and guidance. The contractor shall work with OCC internal organizations, as needed, to ensure that policies, procedures, configuration control, and product life-cycle requirements are fulfilled to the satisfaction of OCC ITS.

B. General Requirements

Location. Information collected, used, stored, maintained, or otherwise processed by the contractor in the performance of this contract shall be accessed, transferred, stored or processed only within the United States. In addition, the maintenance and support operations of the contractor's technology and information must take place, and originate from, within the United States.

Authorization to Use, Store, or Share Sensitive Information. The contractor shall be responsible for properly protecting all information used, gathered, or developed as a result of work under this contract. The contractor shall also protect all government data, equipment, etc. by treating the information as sensitive. All information gathered or created under this contract shall be considered as Controlled but Unclassified (CUI) information. It is anticipated that this information will be gathered, created, and stored within the primary work location. If contractor personnel must remove any information from the primary work area, they shall protect it to the same extent they would their proprietary data and/or company trade secrets.

Confidentiality. The contractor agrees to assume responsibility for protecting the confidentiality of government records and data associated with this contract, which are not public information.

Non-Disclosure Agreement. Each individual who has access to sensitive OCC data and/or the OCC network, systems, applications, laptops, or other OCC information resources that may process, store or transmit sensitive OCC data under this contract shall execute a Non-Disclosure Agreement before being allowed such access.

Deliverables. The deliverables in this contract will be considered CUI and shall not be shared with any other organization without prior written approval from the [assigned Government Official].

C. Treasury Directive Publication (TD P) 15-71 Chapter II, Section 2 U.S. Persons

The Treasury Security Manual, Chapter II, Section 2, provides Departmental Office (DO)/bureau citizenship requirements:

1. Federal employees, contractors, subcontractors, experts, consultants, and paid/unpaid interns hired for work within the United States or its territories and possessions and who require access to DO/bureau-owned or controlled facilities, IT systems or security items or products, shall either be U.S. citizens or have lawful permanent resident alien status (green card holders).
2. DO/bureaus shall adhere to the following standard when allowing Federal employees, contractors, subcontractors, experts, consultants, and paid/unpaid interns access to DO/bureau-

owned or - controlled facilities, IT systems, or security items or products/data. The following risk data (characterization) applies:

- (a) Low Risk = U.S. Citizen or lawful Permanent Resident Alien
- (b) Moderate Risk = U.S. Citizen or lawful Permanent Resident Alien with at least three or more years of U.S. residency from the date of legal entry to the U.S
- (c) High Risk = U.S. Citizen

3. Only under exceptional circumstances should a waiver be requested when a Federal employee, contractor, subcontractor, expert, consultant, and paid/unpaid intern does not meet the citizenship or lawful permanent resident alien status requirement. Requests for waivers to the citizenship requirement must be submitted in writing. Foreign nationals employed as Federal employees, contractors, subcontractors, experts, consultants, and paid/unpaid interns shall not be allowed access to DO/bureau-owned or controlled facilities, IT systems, or security items or products prior to the issuance of a waiver.

4. Treasury Control-SA-4: Except for systems principally supporting overseas Federal/Treasury personnel and/or activities, Treasury systems shall be located and operated within the U.S.

D. Continuous Monitoring

Compliance Reviews and Audits. The contractor shall permit and support compliance reviews and audits under applicable laws to allow the OCC to meet legal and compliance obligations and shall implement processes that allow visibility into the privacy and security controls employed and their effectiveness. The contractor shall provide the OCC or authorized designated officials with information requested by auditors in a timely manner, consistent with the respective auditor's deadline, in support of security compliance reviews and various annual audits, e.g., FISMA, Financial Statement Audit, A-123, etc.

E. CUI Data Protection

Need to Know. The inadvertent or accidental transmission, processing, or storage of Sensitive CUI, data will only be disclosed to authorized personnel on a Need-To-Know basis. The contractor shall ensure that appropriate administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information and data is properly protected.

Such measures include controls listed in NIST SP 800-171, Protecting Controlled Unclassified Information in Nonfederal Systems and Organizations, as amended, in the following areas:

Access Control, Awareness and Training, Audit and Accountability, Configuration Management, Identification and Authentication, Incident Response, Maintenance, Media Protection, Personnel Security, Physical Protection, Risk Assessment, Security Assessment, System and Communications Protection, and System and Information Integrity.

Data Encryption. Where encryption is required, as specified by the OCC, the contractor shall ensure that encryption is established and maintained for data at rest and in transit for the duration of the contract. The encryption employed shall be equivalent to those approved in Federal Information Processing Standards (FIPS) Publication 140-2 or 140-3, as amended.

General Use of Controlled Unclassified Information (CUI). The contractor shall not use any CUI or CUI subcategories, including, Personally Identifiable Information (PII) or low-sensitivity PII (e.g., E-mail Groups and Lists), for any purpose other than those activities necessary to the performance of this contract.

Use of Contractor Equipment. Use of contractor-owned laptops or other equipment (e.g., media storage devices, servers, etc.) to process, transmit, or store OCC sensitive CUI without OCC's formal approval is prohibited.

F. CUI Incident Response

Notification. The contractor must report all information security incidents that potentially or actually cause the compromise of OCC sensitive CUI, even if the contractor believes the security incident may be limited, small, or insignificant with respect to OCC data. The OCC will determine when the contractor's reported security incident requires additional focus and attention. Within one hour from the time the contractor validates that an information security incident has occurred, the contractor must report the security incident information to the OCC Cyber Defense Center (CDC): Email—Computer.Security@occ.treas.gov; Phone—(202) 649-7930, regardless of day or time.

G. Information Ownership

Government Access. The government will retain unrestricted rights to government data. The OCC retains ownership of any user created/loaded data and deliverables (e.g., documents, applications, custom code, diagrams, workflows, data sets, etc.) hosted on contractor's equipment, systems, infrastructure, etc., as well as maintains the right to request full copies of these at any time.

Removal of OCC Data. The contractor acknowledges the OCC's exclusive right of ownership of the information and is required to transfer, return, and/or delete all agency data collected, processed, stored or maintained by the contractor on behalf of OCC upon termination of services, and shall provide written certification and supporting documentation attesting to the transfer, return and/or deletion of agency information or data generated, collected, processed, maintained, or stored by the contractor and any subcontractors, per instructions the "Security and Privacy Vendor Deliverables" section.

Documents and Deliverables. The preliminary and final OCC-specific deliverables and all associated working papers are the property of the U.S. Government. The contractor shall not release any information without the written consent of the Contracting Officer. All work papers, preliminary and final deliverables must be submitted to the COR at the conclusion of the contract in an acceptable and usable format, which may include the original format.

Removal of Data

Section	Deliverable	Frequency	Due Date
G. Information Ownership. Removal of OCC Data	Certification of OCC Data Removal from Contractor's (including any subcontractors), Possession, Equipment, and/or Environment (Attachment I). Data removal instructions include transfer of information to another party per specific instructions from the CO; return of information, deliverables, etc., to the CO; and deletion of OCC data from contractor equipment (e.g., laptops and other contractor-owned equipment previously approved by the OCC for this use) using NIST SP 800-88, Guidelines for Media Sanitization, as amended.	Once	NLT 15 days after termination/expiration of contract

SECTION C – CLAUSES AND OTHER TERMS AND CONDITIONS

1.0 APPLICABLE CLAUSES

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

The solicitation and resulting contract will incorporate one or more clauses by reference and the full text of a referenced clause may be accessed electronically at the FAR website: <http://www.acquisition.gov/far/>

Department of Treasury Acquisition Regulation (DTAR) Clauses Incorporated by Reference may be accessed electronically at the DTAR website: <https://www.acquisition.gov/dtar>

CLAUSE NO.	CLAUSE TITLE	CLAUSE DATE
FAR 52.202-1	Definitions	JUN 2020
FAR 52.203-3	Gratuities	APR1984
FAR 52.203-5	Covenant Against Contingent Fees	MAY 2014
FAR 52.203-6	Restrictions on Subcontractor Sales to the Government	JUN 2020
FAR 52.203-7	Anti-Kickback Procedures	JUN 2020
FAR 52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
FAR 52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	MAY 2014
FAR 52.203-12	Limitation on Payments to Influence Certain Federal Transactions	JUN 2020
FAR 52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
FAR 52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
FAR 52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
FAR 52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
FAR 52.204-13	System for Award Management Maintenance	OCT 2018
FAR 52.204-14	Service Contract Reporting Requirements	OCT 2016
FAR 52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
FAR 52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014
FAR 52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
FAR 52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
FAR 52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021

CLAUSE NO.	CLAUSE TITLE	CLAUSE DATE
FAR 52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
FAR 52.204-30	Federal Acquisition Supply Chain Security Act Orders—Prohibition	DEC 2023
FAR 52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	NOV 2021
FAR 52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
FAR 52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	NOV 2015
FAR 52.211-9	Desired and Required Time of Delivery (Clause fill-in info as follows: Per Attachment B— <i>HOCL Conf Meeting Rooms and Scheduling</i>)	JUN 1997
FAR 52.211-17	Delivery of Excess Quantities	SEP 1989
FAR 52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services	NOV 2023
FAR 52.219-8	Utilization of Small Business Concerns	FEB 2024
FAR 52.219-28	Post-Award Small Business Program Rerepresentation	FEB 2024
FAR 52.222-3	Convict Labor	JUN 2003
FAR 52.222-21	Prohibition of Segregated Facilities	APR 2015
FAR 52.222-26	Equal Opportunity	SEP 2016
FAR 52.222-35	Equal Opportunity for Veterans	JUN 2020
FAR 52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
FAR 52.222-37	Employment Reports on Veterans	JUN 2020
FAR 52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
FAR 52.222-41	Service Contract Labor Standards	AUG 2018
FAR 52.222-42	Statement of Equivalent Rates for Federal Hires <i>Fill-ins for this clause available on request</i>	MAY 2014
FAR 52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts)	AUG 2018
FAR 52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment	MAY 2014
FAR 52.222-50	Combating Trafficking in Persons	OCT 2025
FAR 52.222-54	Employment Eligibility Verification	JAN 2025
FAR 52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022

CLAUSE NO.	CLAUSE TITLE	CLAUSE DATE
FAR 52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
FAR 52.224-1	Privacy Act Notification	APR 1984
FAR 52.224-2	Privacy Act	APR 1984
FAR 52.224-3	Privacy Training	JAN 2017
FAR 52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
FAR 52.226-6	Promoting Excess Food Donation to Nonprofit Organizations	JUN 2020
FAR 52.226-7	Drug-Free Workplace	MAY 2024
FAR 52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	MAY 2024
FAR 52.229-3	Federal, State, and Local Taxes	FEB 2013
FAR 52.229-12	Tax on Certain Foreign Procurements (if Identified as Foreign Person Under FAR 52.229-11)	FEB 2021
FAR 52.232-1	Payments	APR 1984
FAR 52.232-8	Discounts for Prompt Payment	FEB 2002
FAR 52.232-11	Extras	APR 1984
FAR 52.232-17	Interest	MAY 2014
FAR 52.232-23	Assignment of Claims	MAY 2014
FAR 52.232-33	Payment by Electronic Funds Transfer-System for Award Management	OCT 2018
FAR 52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
FAR 52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
FAR 52.233-1	Disputes (MAY 2014) – Alternate I (DEC 1991)	DEC 1991
FAR 52.233-3	Protest After Award	AUG 1996
FAR 52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
FAR 52.242-13	Bankruptcy	JUL 1995
FAR 52.244-2	Subcontracts	JUN 2020
FAR 52.246-2	Inspection of Supplies-Fixed-Price	AUG 1996
FAR 52.246-4	Inspection of Services-Fixed-Price	AUG 1996
FAR 52.246-16	Responsibility for Supplies	APR 1984
FAR 52.246-25	Limitation of Liability – Services	FEB 1997

CLAUSE NO.	CLAUSE TITLE	CLAUSE DATE
FAR 52.249-2	Termination for Convenience of the Government (Fixed-Price)	APR 2012
FAR 52.249-8	Default (Fixed-Price Supply and Service)	APR 1984
FAR 52.252-6	Authorized Deviations in Clauses [INCLUDING DTAR AND OCC CLAUSES WHERE APPLICABLE]	NOV 2020
FAR 52.253-1	Computer Generated Forms	JAN 1991
DTAR 1052.232-7003	Electronic submission of payment requests	APR 2015
DTAR 1052.210-70	Contractor Publicity	APR 2015

Class Deviation No. 2025-00020 — Implementing the Class Deviation from the Federal Acquisition Regulation (FAR) Part 12, *Acquisition of Commercial Products and Commercial Services*, in accordance with Executive Order (EO) 14275, “Restoring Common Sense to Federal Procurement,” effective November 3, 2025. [The following clause is not included in this solicitation: FAR 52.212-5, *Contract Terms and Conditions Required to Implement Statutes or Executive Orders – Commercial Products and Commercial Services*].

AUTHORITY—This class deviation is issued under the authority of EO 14275, OMB Memo M-25-26, 48 CFR 1.4, and RFO FAR 1.304.

FAR CLAUSES INCORPORATED IN FULL TEXT

FAR 52.217-7 Option for Increased Quantity-Separately Priced Line Item (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within **1 business day before the contract expiration date**. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of Clause)

FAR 52.217-8 Option to Extend Services (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed **6** months. The Contracting Officer may exercise the option by written notice to the Contractor within **1 business day before the contract expiration date**.

(End of Clause)

FAR 52.217-9 Option to Extend the Term of the Contract (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **1 day prior to the current operating period end date**; provided that the Government gives the

Contractor a preliminary written notice of its intent to extend at least **30 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **60 months (5 years)**.

(End of Clause)

OCC CLAUSES INCORPORATED IN FULL TEXT

**OCC 1052.201-8000 OCC CONTRACTING OFFICER'S REPRESENTATIVE (COR)
DELEGATION AND AUTHORITY (DEC 2013)**

- (a) The Contracting Officer's Representative (COR) will be identified via separate letter to the Contractor.
- (b) Performance of work under this contract is subject to the technical direction of the COR, as delegated in writing. The term "technical direction" includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, fills in details and otherwise serves to ensure that tasks outlined in the work statement are accomplished satisfactorily.
- (c) Technical direction must be within the scope of the specification(s)/work statement. The COR does NOT have authority to issue technical direction that:
 - (1) changes any of the terms, conditions, or specification(s)/work statement of the contract;
 - (2) in any manner causes an increase or decrease in the contract price, or the time required for contract performance;
 - (3) interferes with the contractor's right to perform under the terms and conditions of the contract; or
 - (4) directs, supervises or otherwise controls the actions of the contractor's employees
- (d) Technical direction may be oral or in writing. The COR shall confirm oral direction in writing within five workdays, with a copy to the contract administrator.
- (e) The contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR, falls within the limitations in (c), above, the contractor shall immediately notify the contracting officer no later than the beginning of the next Government workday.
- (f) Failure of the contractor and the contracting officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the clause entitled "Disputes".

(End of Clause)

**OCC 1052.204-8000 PROPER IDENTIFICATION OF CONTRACTOR PERSONNEL
(AUG 2020)**

- (a) All contractor personnel shall provide proper identification in both oral and written communications. Oral communications include, but are not limited to, in-person, Skype video and audio communications, and teleconference communications. Additionally, when calling into meetings contractor personnel shall identify that they are a contractor by stating their name followed by stating contractor support for their respective OCC business unit.
- (b) For written communications, all contractor personnel shall use a signature block that includes identification as a contractor, the name of the contractor personnel's company, office telephone number, alternate contact (mobile) number (if applicable), and identification of the current assigned Contracting Officer Representative (COR) as stated in the contract.

Name: [Insert Name]
Job Title: [Insert Title] (Contractor)
Company Name: [Insert Name of Company]
COR's Name: [Insert Name of the current COR]
Telephone: Office: (XXX) XXX-XXXX
Work Cell: Mobile: (XXX) XXX-XXXX

(End of Clause)

OCC 1052.232-8002 AVAILABILITY OF FUNDS (APR 2014)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of non-appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of Clause)

OCC 1052.239-8000 INFORMATION AND COMMUNICATION TECHNOLOGY (ICT) ACCESSIBILITY (JAN 2023)

- (a) Pursuant to Section 508 of the Rehabilitation Act of 1973 ([29 U.S.C 794d](#)) , as amended by the Workforce Investment Act of 1998, all Information and Communication Technology (ICT) products and services developed, acquired, maintained, or used under this contract/order must comply with the Information and Communication Technology (ICT) Accessibility Provisions, set forth by the Architectural and Transportation Barriers Compliance Board (also referred to as the "Access Board") in [36 CFR Part 1194](#) ([36 CFR 1194.1](#) and [36 CFR 1194.2](#)). Information about Section 508 is available at <https://www.section508.gov/>. The complete text of Section 508 Final Provisions can be accessed at <https://www.access-board.gov/ict/about/>
- (b) The Section 508 accessibility standards applicable to this contract/order are identified in the Statement of Work/Performance Work Statement. If it is determined by the Government that ICT products and services provided by the Contractor do not conform to the described accessibility standards in the submitted Accessibility Conformance Report (ACR), using the Voluntary Product Assessment Template (VPAT), remediation of the products or services to the level of conformance specified in the Contractor's ACR/VPAT will be the responsibility of the Contractor at its own expense.
- (c) Any modification(s) to this contract/order which adds new ICT products or services or revises the type of, or specifications for, products or services the Contractor is to provide, including ICT

deliverables such as electronic documents and reports, the Contracting Officer may require that the Contractor submit an Accessibility Conformance Report (ACR) using the latest version of the Voluntary Product Assessment Template (VPAT) in accordance with its completion instructions and Section 508 requirements, found at <https://www.itic.org/policy/accessibility/vpat>, to assist the Government in determining that the ICT products or services support Section 508 accessibility standards.

(End of Clause)

OCC 1052.242-8000, EVALUATION OF CONTRACTOR PERFORMANCE (DEC 2010)

- A. The OCC will evaluate the contractor's performance after contract award. If this contract has option periods, interim evaluations will be conducted at the end of each option period and then a final evaluation report will be prepared at the completion of the entire contract. If this contract does not have renewal options, an evaluation will be conducted upon completion of the contract. Notwithstanding the preceding, the Contracting Officer may conduct evaluations more or less frequently, if the Contracting Officer deems appropriate.
- B. Evaluations will be conducted using an electronic format as established by Contractor Performance Assessment Reporting System (CPARS), an internet-based database of contractor performance information. The OCC will enter the information, gathered from the evaluation, into the CPARS.
- C. If the contractor responds to the evaluation, and the response rebuts any or all of the ratings, the Contracting Officer will attempt to reconcile the areas of disagreement with the contractor. If agreement cannot be reached, the evaluation and response shall be reviewed at a level higher than the Contracting Officer and a final evaluation will be issued by the reviewing official. If the reviewing official finds, either all or in part, against the contractor, the contractor's response shall become part of the final evaluation. The reviewing official's final decision shall not be subject to dispute under the terms and conditions of the Disputes clause or subject to resolution in accordance with the terms and conditions of the Alternative Dispute Resolution clause. The reviewing official will provide the contractor with a copy of the final evaluation.
- D. Any government agency authorized to access the Past Performance Information Retrieval System (PPIRS) database will be able to view the performance information related to this contract. Any government agency may also receive a copy the contractor's performance evaluation, and any associated comments, by contacting the OCC. The OCC will also, upon request, provide copies of any and all of the contractor's evaluations to the contractor.

(End of Clause)

OCC 1052.242-8002 PERIOD OF PERFORMANCE (SEP 2012)

The transition and base period of performance of this contract is from May 1, 2026 through October 31, 2026.

If exercised, the first option period/year will extend the contract period of performance from November 1, 2026 through October 31, 2027.

If exercised, the second option period/year will extend the contract period of performance from November 1, 2027 through October 31, 2028.

If exercised, the third option period/year will extend the contract period of performance from November 1, 2028 through October 31, 2029.

If exercised, the fourth option period/year will extend the contract period of performance from November 1, 2029 through October 31, 2030.

If exercised, the fifth option period may extend the contract period of performance from November 1, 2030 through April 30, 2031 [noting this 6-month period may commence before or after any option operating period].

(End of Clause)

1052.243-8001 (OCC) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER (SEP 2016)

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who provide technical direction or in any other manner communicates with contractor personnel during the performance of this contract shall constitute a change under the “Changes” clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer (CO), or is pursuant to specific authority otherwise included as a part of this contract.

(c) The CO is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the CO's. In the event the Contractor effects any change at the direction of any person other than the CO, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The primary CO will be identified via separate letter to the contractor. Any CO with appropriate warrant authority may direct changes through a modification to the contract.

(End of Clause)

OCC 1052.245-8003 CONTROLLED UNCLASSIFIED INFORMATION (SEP 2021)

(a) Because of the proprietary nature of such information, the contractor understands that work performed by and information released to the contractor is sensitive in nature and shall not be disclosed to anyone other than the Office of the Comptroller of the Currency (OCC) (Government) employees assigned to the contract and other contractor personnel the Government authorizes to receive the information. The contractor agrees to protect all Controlled Unclassified Information received by or provided to the contractor pursuant to this contract from unauthorized disclosure or use for as long as the information remains proprietary or controlled and further agrees that it will not use such information for any purpose other than that relating to the performance of this contract. For purposes of the contract, all information provided to or received by the contractor is deemed confidential and proprietary.

(b) The contractor shall execute and is responsible for having all of its employees, subcontractor employees, and agents working under the contract and/or having access to sensitive information under this contract execute a “Conditional Access to Controlled Unclassified Information Non-Disclosure Agreement.”, hereafter referred to as an NDA, provided as Attachment J at time of award to this resulting contract. This NDA provides that Controlled Unclassified Information provided to the contractor or its employees, subcontractors, or agents, shall not, except as permitted in connection

with the performance of the contract, be further disclosed or used without the prior written approval of the Government.

- (c) Contractor employees processed in the Personnel and Administration Security System (PASS), will complete the NDA electronically.
- (a) Contractor employees processed outside of PASS, will complete the attached hard copy NDA and submit to the Contracting Officer (CO).
- (b) Executed copies of the NDA are required by each contractor employee, subcontractor employee or agent who will perform work on the contract before they can begin actual performance under the contract.

(End of Clause)

OCC 1052.342-8000 CONTRACTOR'S COMMITMENT TO EQUAL OPPORTUNITY IN EMPLOYMENT AND CONTRACTING (MAR 2019)

Contractor confirms its commitment to equal opportunity in employment and contracting. To implement this commitment, the Contractor shall ensure, to the maximum extent possible consistent with applicable law, the fair inclusion of minorities and women in its workforce. The Contractor shall insert the substance of this clause in all subcontracts under this Contract when the dollar value exceeds \$150,000.

Within thirty (30) calendar days of a written request from the OCC's Office of Minority and Women Inclusion (OMWI), or such longer time as the OMWI determines, and without any additional consideration required from the Agency, the Contractor shall provide documentation, satisfactory to the Agency, of the actions it (and, as applicable, its subcontractors) has undertaken to demonstrate its good-faith efforts to comply with the aforementioned provisions.

For purposes of this contract, "good-faith efforts" may include actions by the contractor intended to identify and, if present, remove barriers to minority and women employment or expansion of employment opportunities for minorities and women within its workforce. Efforts to remove such barriers may include, but are not limited to, recruiting minorities and women, providing job-related training, or engaging in other activities that could lead to those results.

The documentation requested by the OMWI may include, but is not limited to, one or more of the following:

1. A written affirmative action plan or other written program designed to ensure the fair inclusion of minorities and women in the contractor's workforce, including outreach, recruitment, and training efforts whereby the contractor sets forth specific, results-oriented policies and procedures.
2. A list of subcontract awards under the Contract categorized by dollar, date of award, and the subcontractor's ownership status, including whether the subcontractor is minority-owned (by race and/or ethnicity) or women-owned.
3. Documentation similar to that described in paragraph 1 with respect to each subcontractor.
4. Any other actions demonstrating the contractor's or subcontractor's good-faith efforts to include minorities and women in its workforce.

Consistent with Section 342(c)(3) of the Dodd–Frank Wall Street Reform and Consumer Protection Act (PL 111-203) (Dodd–Frank), a failure to demonstrate to the Director of the OMWI such good-faith efforts to include minorities and women in the Contractor’s workforce (and, as applicable, the workforce of its subcontractors) may result in termination of the Contract for default, referral to the Office of Federal Contract Compliance Programs, or other appropriate action.

For purposes of this clause, the terms “minority,” “minority-owned business” and “women-owned business” shall have the meanings set forth in Section 342(g) of Dodd–Frank.

(End of Clause)

2.0 OTHER TERMS AND CONDITIONS

2.1 Specifications of Advance Notification by the Government

The Government will notify the Contractor at least 72 hours in advance of the number of guaranteed attendance or quantities for each meeting room rental function requiring food and/or beverage services prior to the start date of the UCE Session. The Government will also notify the Contractor at least 14 days in advance of the specific audiovisual and technology equipment requirements prior to the start date of the UCE Session.

2.2 Americans with Disabilities Act (ADA) Certificate of Conformance

Hotels, motels, inns and other places of lodging must comply with the Americans with Disabilities Act (ADA). Under the ADA, hotels, motels, inns and other places of lodging designed or constructed after January 26, 1993, must be usable by persons with disabilities. To meet this requirement, lodging facilities must comply with certain regulations published by the Justice Department. The regulations contain detailed architectural requirements called the ADA Standards for Accessible Design (Standards), 28 C.F.R. pt. 36, Appendix A. Lodging facilities must comply with all of the requirements in the Standards that are applicable.

The Contractor must maintain ADA compliance and conformance for the duration of the contract, and with any new renovations, submit a new/updated certificate of conformance. The Contractor may review the [ADA Checklist for New Lodging Facilities](#) as a guide for meeting ADA Requirements.

2.3 Discloser that the Government shall not Provide Indemnity to the Contractor, nor to any of its Subcontractors

Notwithstanding language in any license agreement or the non-appropriated status of the Office of the Comptroller of the Currency: the Government will not provide indemnity of any kind to the Contractor or its associates.

2.4 Immunity from State Courts and Foreign Jurisdictions

The US Government is immune from lawsuits in a state court (*see* U.S. Code Title 28 (“Judiciary and Judicial Procedure”), Part IV (“Jurisdiction and Venue”), Chapter 85 (“District Courts; Jurisdiction”) § 1346 (“United States as defendant”)) and does not submit to any foreign jurisdiction; and the contract may not be unilaterally terminated by the Contractor (this order subject to US Code Title 41 (“Public Contracts”), Subtitle III (“Contract Disputes”), Chapter 71).

3.0 TYPE OF CONTRACT

The resulting contract will be of a firm-fixed-price (FFP) type.

4.0 ADMINISTRATIVE MATTERS

A postaward orientation will be scheduled following contract award and will be coordinated by the Contracting Officer (CO) and COR. The purpose of the conference will be to familiarize the Contractor with contract expectations, clarifications, services and activities, performance standards and deliverables, terms and conditions, and administrative procedures; as well as achieve a clear and mutual understanding, by all parties, of the contractual requirements, including scope, tasks, activities, schedule and deliverables. Sufficient time will also be available to parse out any potential problem areas or complex issues previously experienced. All Contractor participants will be required to have a signed NDA on file.

5.0 INVOICING PROCEDURES

The Contractor should invoice once upon providing the services and/or supplies contained in this delivery order. The Contractor must pre-arrange with the Contracting Officer if multiple invoice submissions are requested. Refer to DTAR 1052.232-7003 Electronic Submission of Payment Requests for information on the submission of invoices.

5.1 FFP LINs

In addition, the following data elements shall be included on each invoice:

- Contract Number: (from SF 1449, Block 4)
- Paying Number: (From SF 1449, Block 1)
- Project Title: OCC HOCL Support for the UCE Program

The Contractor shall certify with a signed and dated invoice for requesting payment.

Refer to **DTAR 1052.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (APR 2015)** for information on the submission of invoices.

The final invoice is desired to be submitted within 6 months of project completion. The Contractor shall provide the Government with a monthly status on when the final invoice will be submitted to the Government at contract end.

5.2 FFP LINs Billing

The Contractor may invoice as stated in Section B –Price/Cost Schedule tables for the FFP LINs monthly for payment. The invoice shall include the PoP covered by the invoice (all current charges shall be within the active billing cycle (i.e., PoP) and the LIN number(s) and title(s). All prices shall be reported by LIN element (as shown in the table of Section B, 2.0 – Price/Cost Schedule table), and shall be provided for the current invoice. The Contractor shall provide the invoice data in an acceptable format (MS Excel or PDF) as identified by the Government's (OCC's) COR. In accordance with FAR 52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services, all invoices shall be proper in form in order to be processed for payment, and must include:

- Name and address of the Contractor;
- Invoice date and number;

- Contract number, line item number and, if applicable, the order number;
- Description, quantity, unit of measure, unit price and extended price of the items delivered;
- Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;
- Terms of any discount for prompt payment offered;
- Name and address of official to whom payment is to be sent;
- Name, title, and phone number of person to notify in event of defective invoice;
- Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract; and
- Electronic funds transfer (EFT) banking information

SECTION D – CONTRACT DOCUMENTS, EXHIBITS AND/OR ATTACHMENTS

1.0 LIST OF ATTACHMENTS

The following attachments are referenced throughout this request for quote (RFQ) for review and compliance, in order to be considered for each phase of the evaluation:

Attachment	Attachment Title
A	Property Technical and Concessions Capabilities
B	HOCL Conference/Meeting Rooms Schedule and Configuration Requirements
C	HOCL Lodging Room and Scheduling Requirements
D	HOCL HOCL Solicitation Attestation and Provision Responses
E	HOCL Past Performance Questionnaire
F	HOCL Site Visit Comprehensive Checklist
G	HOCL Price/Cost Schedule
H	Crafting 508 Compliant Word-PDF Docs Guide
I	Non-Disclosure Agreement (Applicable to the Awardee Only)
J	Certificate of Data Return and/or Destruction
K	Questions and Answers (Q&A) Worksheet

2.0 LIST OF EXHIBITS

The exhibits listed below, excluding the attachments, are for informational purposes only, and subject to change throughout the duration of the contract period, and therefore, may not be incorporated within the resulting contract.

Exhibit	Exhibit Title
A	Panel Meeting Room Layout
B	Individual Testing Room Layout

Exhibit	Exhibit Title
C	Dedicated Administration Room Layout

SECTION E – SOLICITATION PROVISIONS, INSTRUCTIONS, AND EVALUATIONS

In accordance with (IAW) FAR 12, the following provisions, to the maximum extent practicable, are hereby included applicable to the acquisition of commercial products or commercial services related to this requirement. The Government reserves the right to determine the Quoter's consistency with customary commercial practices via the Quoter's SAM.gov registration. **Therefore, only provisions identified by Attachment D (HOCL Solicitation Attestation and Provision Responses) must be submitted in response.**

1.0 APPLICABLE PROVISIONS

FAR 52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. After request, the CO will make the full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its proposal or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its proposal of offer. The solicitation provisions and/or contract clauses are available in either HTML or PDF format at:

<http://www.acquisition.gov/far/>

PROVISION NO	PROVISION TITLE	PROVISION DATE
FAR 52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
FAR 52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
FAR 52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	JAN 2017
FAR 52.204-5	Women-Owned Business (Other Than Small Business)	OCT 2014
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FAR 52.204-13	System for Award Management Maintenance	OCT 2018
FAR 52.204-14	Service Contract Reporting Requirements	OCT 2018
FAR 52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
FAR 52.204-17	Ownership or Control of Offeror	AUG 2020
FAR 52.204-20	Predecessor of Offeror	AUG 2020
FAR 52.204-22	Alternative Line Item Proposal	JAN 2017

PROVISION NO	PROVISION TITLE	PROVISION DATE
FAR 52.204-29	Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures	DEC 2023
FAR 52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation	NOV 2015
FAR 52.209-5	Certification Regarding Responsibility Matters	AUG 2020
FAR 52.209-7	Information Regarding Responsibility Matters	OCT 2018
FAR 52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
FAR 52.212-1	Instructions to Offerors—Commercial Products and Commercial Services [ADDENDUM BELOW]	SEP 2023
FAR 52.216-1	Type of Contract (Provision fill-in info as follows: FFP Type)	APR 1984
FAR 52.217-5	Evaluation of Options	JUL 1990
FAR 52.222-22	Previous Contracts and Compliance Reports	FEB 1999
FAR 52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications	JUN 2020
FAR 52.233-2	Service of Protest (Provision fill-in info as follows: Anethra Facione, Contracting Officer at Anethra.Facione@occ.treas.gov)	SEP 2006
FAR 52.252-5	Authorized Deviations in Provisions [INCLUDING DTAR AND OCC CLAUSES WHERE APPLICABLE]	NOV 2020

Class Deviation No. 2025-00020 — Implementing the Class Deviation from the Federal Acquisition Regulation (FAR) Part 12, *Acquisition of Commercial Products and Commercial Services*, in accordance with Executive Order (EO) 14275, “Restoring Common Sense to Federal Procurement,” effective November 3, 2025. [The following provision is not included in this solicitation: FAR 52.212-3, *Offeror Representations and Certifications – Commercial Products and Commercial Services*].

AUTHORITY—This class deviation is issued under the authority of EO 14275, OMB Memo M-25-26, 48 CFR 1.4, and RFO FAR 1.304.

FAR CLAUSES INCORPORATED BY FULL TEXT (Fill-ins)

NOTE: Contractor’s representation information will be reviewed by the Government via its SAM registration for FAR 52.204-26. If the Offeror/Quoter has represented that it "does provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, completion of FAR 52.204-24 is required.

FAR 52.204-26 Covered Telecommunications Equipment or Services-Representation (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

FAR 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services.

The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

FAR 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation (NOV 2015)

(a) Definitions. "Inverted domestic corporation" and "subsidiary" have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of Provision)

FAR 52.209-5 Certification Regarding Responsibility Matters (AUG 2020)

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see [52.209-7](#), if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under [11 U.S.C. 362](#) (the Bankruptcy Code).

(ii) The Offeror has ☐ has not ☐, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an

erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of Provision)

FAR 52.209-7 Information Regarding Responsibility Matters (OCT 2018)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see [52.204-7](#)).

(End of Provision)

FAR 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of Provision)

FAR 52.222-25 Affirmative Action Compliance (APR 1984)

The Offeror represents that-

(a) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by the rules and regulations of the Secretary of Labor (41 CFR 60-1 and 60-2); or

(b) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(End of Provision)

FAR 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in [26 U.S.C. 7701\(a\)\(30\)](#) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 701\(a\)\(31\)](#)); and
- (5) Any trust if—
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under [26 U.S.C. 5000C](#), the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR [52.229-12](#), Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>

(End of Provision)

2.0 INSTRUCTIONS TO QUOTERS OF COMMERCIAL BUYS

FAR 52.212-1 Instructions to Offerors—Commercial Products and Commercial Services (SEP 2023)

Subdivision (b), Submission of offers, of FAR clause 52.212-1 “Instructions to Offerors—Commercial Products and Commercial Services” is hereby tailored per FAR section 12.302 to include the following additional terms and conditions. All other terms and conditions in FAR provision 52.212-1 remain applicable to this request for quote (RFQ) in full force and effect:

Addendum to FAR 52.212-1

Per Federal Acquisition Regulation section 12.302, the instructions identified below (Section E, 2.0—*Instructions to Quoters of Commercial Products and Services*) are incorporated as an addendum, which provides additional instructions to the provision at FAR 52.212-1. The original copy of the quotation package submission shall contain a signed SF 1449 with Blocks 17a, 30a, 30b, and 30c completed and the original of all documents requiring signature by the Quoter.

Quoters must examine and follow all instructions identified within this RFQ. Failure to comply with the instructions in any way may result in a determination that the quote is unacceptable and will not be evaluated by the Government. This determination will be made at the sole discretion of the Contracting

Officer (CO). All materials submitted must be directly pertinent to the requirements of this RFQ. Extraneous narrative, elaborate brochures, uninformative "Public Relations" material shall not be submitted.

2.1 General Instructions

- a. The Government reserves the right to make an award based on initial quotes received, without discussion of such quotes. In responding to this RFQ, it is the Quoter's responsibility to provide current information in its quote. If in reviewing the quote the Government identifies or otherwise learns that any information provided therein is not accurate or misrepresents the Quoter's status or capabilities, the Government reserves the right to use that information as part of the Quoter's responsibility determination, i.e., resulting in the basis of a determination of non-responsibility. Quotes must set forth full, accurate, and complete information as required by this solicitation package (including attachments). The penalty for making false statements in quotes is prescribed in 18 U.S.C. 1001. The Government will review SAM for representations, certifications, and compliance requirements as deemed necessary.
- b. Quotation packages must be submitted in response to the solicitation made through the Governmentwide point of entry (GPE), i.e., SAM.gov, to the person(s) listed and by the date and time identified in this RFQ and the GPE. The Government reserves the right not to consider any quotes received after the due date and time specified in RFQ or submitted in any other means other than via email, regardless of the reason. Hard copies will not be accepted. Late quotation package submissions may not be considered for evaluation or award.
- c. The Government will not pay any Quoter for preparation of its submission. The CO is the only individual who can legally commit the Government to the obligation of public funds in connection with this acquisition.
- d. **Price quotes must be valid for a period of not less than June 30, 2026**, noting additional validation extensions may be requested. Quotation packages follow the not-to-exceed (NTE) pages per volume, excluding facility/venue diagrams or instructions/guides.

2.2 Evaluation Factors Submission Instructions

The Government anticipates a Two-Phase, firm down-select approach for evaluating Quoters' responses to this RFQ. The Two-Phase approach will consist of three factors in Phase One (Technical Capability, Past Performance, and Key Personnel), and two factors in Phase Two (Site Visit and Price). Where applicable, each response per phase must be clearly identified in the submission, noting all written factors including price, must remain in its original format (MS Excel and PDF respectively). Although separated in phases, the Quoter must submit all written responses in Phase One and Phase Two at time of the initial quotation package submission due date and time. The factors per phase are listed below:

2.2.1 General Instructions

Phase 1: Quotation packages in response to this solicitation must include the following in order to pass Phase One and be considered eligible for Phase Two and subsequently, contract award –

- **Technical Capability** – The Quoter must demonstrate having the minimum technical capability requirements to provide the HOCL Support for the UCE Program throughout a 5-year contract period. To meet this requirement, the Quoter must provide its responses within:
 - Attachment A 'Property Technical and Concessions Capabilities' – The Quoter must complete the attachment with sufficient details to demonstrate its ability to meet the

- Government's minimum technical requirements for supporting the OCC's UCE Sessions as identified within Section B, Subsection 4.0 of this RFQ; and
- Attachment D 'HOCL Solicitation Attestation and Provision Responses' – The Quoter must complete the attachment for attesting to the terms and conditions of the solicitation, and fill-ins that identifies its representations and certifications that formally declares compliance with specific laws and regulations, as outlined within Section E, Subsection 1.0 of this RFQ. Acceptance of the Government's proposal, provisions, and clauses are required via a return signature of the attestation page of the HOCL Solicitation Attestation and Provision Responses in Attachment D. Any exceptions to the solicitation must be presented within a separate attachment, not to exceed 2 pages, that details the rationale for the exception.
 - **Past Performance** – The Quoter must demonstrate having provided conference and lodging rooms for Government clients/attendees at least two (2) instances (per proposed property) in having successfully performed the requirements within this RFQ, with at least one time serving in the role as the Prime on a Government conferencing and lodging contract within the last 5 years. The Quoter's response must demonstrate having provided the same or similar conferencing and lodging rooms and services, ensuring suitable accessibility for the disabled, adequate venue and room sizes, professional management personnel, with food, beverage, and onsite (or nearby) restaurant and convenience store options. By submitting references' contact information within the questionnaire, the Government has implicit authorization to contact those individuals, as part of the process for verifying performance history, conformance in data security safeguards, service quality, and opportunities to identify potential risks. It is strongly advised for Quoters to highlight successful Government events that required at least 210 rooms for 1 week with multiple meeting rooms and designs daily, inclusive of food and beverage services, as well as all AV and technological equipment, shredding services (if applicable), and the amount of on-site staff that sufficiently supported the event duration, where issues were resolved without delay, but rather a sense of urgency.
 - Attachment E 'HOCL Past Performance Questionnaire' – The Quoter must complete the attachment with sufficient details to demonstrate its ability to perform the Government's minimum HOCL requirements in terms of past service quality, size complexity, event management, meeting room effectiveness, fire safety and ADA compliance, and security for supporting the OCC's UCE Sessions as identified within Section B, Subsections 4.0, 5.0, 9.0, and 10.0 of this RFQ respectively.
 - **HOCL Support Key Personnel (and Backup)** – Quoters must demonstrate having adequate staff and support personnel, to include a Convention Services Manager/Onsite Hotel Manager/Event Manager or similar, as well as a backup point of contact (POC) of the same or similar skillset. Additionally, the proposed Key Personnel (or backup POC) must be an individual having the flexibility to adjust working schedules to support or coordinate support for early mornings, late evenings, and weekends. The Key Personnel candidate(s) and, similarly the backup POC), proposed must have prior operational and leadership experience for coordinating lodging rooms bookings, conference event activities, timely room setups, as well as ordering and scheduling food and beverage services for the size and duration to that similar to the HOCL Support for the UCE Program throughout a 5-year contract period.
 - Convention Services Manager/Onsite Hotel Manager/Event Manager or Similar – To meet this requirement, the Quoter must propose a candidate, in a 2-page résumé format, that has: 1) a bachelor's degree in hospitality, tourism, business, marketing, or a related field of study (or education equivalency with 6 years of relevant

experience); 2) at least 3 years of industry experience, strong large event planning, convention sales, and/or organizational skills; 3) proficient technology skills in MS Office (only Word, Excel, and PowerPoint are required) and hotel systems; and 4) the capability of working flexible hours. The Key Personnel candidate's résumé must demonstrate leadership skills to effectively managing conferencing and lodging rooms similar in size, have comprehensive operational knowledge of various departments, ability to solve problems swiftly under pressure, possess excellent communication styles (both oral and written), and have a keen understanding of analyzing and managing financial data. The candidate must be able to support, deliver, and/or coordinate the requirements identified within Section B of this RFQ.

- *Back Up Convention Services Manager/Onsite Hotel Manager/Event Manager or Similar POC* - To meet this requirement, the Quoter must propose a backup POC candidate to ensure continuity of HOCL Support services if the Primary Manager (i.e., Key Personnel) is unavailable. In a 2-page résumé format, the Quoter must provide a backup POC candidate that has: 1) a bachelor's degree in hospitality, tourism, business, marketing, or a related field of study (or education equivalency with 6 years of relevant experience); 2) at least 3 years of industry experience, strong large event planning, convention sales, and/or organizational skills; 3) proficient technology skills MS Office Suite (only Word, Excel, and PowerPoint are required) and hotel systems; and 4) the capability of working flexible hours. The résumé of the backup POC to the Key Personnel must also demonstrate leadership skills to effectively managing conferencing and lodging rooms similar in size, have comprehensive operational knowledge of various departments, ability to solve problems swiftly under pressure, possess excellent communication styles (both oral and written), and have a keen understanding of analyzing and managing financial data. The candidate must be able to support, deliver, and/or coordinate the requirements identified within Section B of this RFQ.

Phase 2: Quoters' participation and quotation packages in response to this solicitation must include the following in order to pass Phase Two and be considered eligible for contract award –

- ***Site Visit*** – Quoters that are notified of having passed Phase One should review the checklist contained within Attachment F (HOCL Site Visit Comprehensive Checklist) to prepare for the site visit that follows. The Quoter must perform the entire walk-through with the Government Evaluators/Observers after acceptance of the date and time coordinated for doing so. Failure to participate in the site visit will result in an immediate determination that the quotation package is incomplete and therefore, unacceptable and will not be evaluated further for consideration or award.
- ***Price*** – The Quoter must complete the Price/Cost Schedule (Attachment G), with all calculations entered accurately to the rooms and services being sought are required from Quoters at time of solicitation close to be considered for analyzing and award selection. Quoters are encouraged to offer concessions and discounts within its response as revised price quotes may not be requested or accepted. The Quoter must include (separately) any additional pricing forms/agreements requiring Government signature with its response, including any Other Direct Costs (ODCs) not contained within the attachment (e.g., in-room WiFi, shuttle service, parking, laundry service). The Quoter may include a price narrative detailing the discounts or concessions offered, noting complimentary food and/or beverages, meeting rooms, lodging rooms, room upgrades, reduced or waived parking fees or room attrition, audiovisual or technology equipment/services, etc. The narrative must include

details of known hotel details regarding other hotel accommodations made when the contracted hotel is not available, including conferencing and lodging rooms, transport information, storage needs, and other temporary accommodations.

As it relates to the total price under the resulting contract, the Government will consider dividing by two (representing a potential 6-months additional services) the final option period prices for any extension of supplies per FAR clause 52.217-8. Therefore, Quoters are not required to propose prices for the potential extended performance period, or any portion thereof, as described by FAR Clause 52.217-8 Option to Extend Services.

2.3 Quotation Package Format Submission Instructions

Quoters' quotation packages shall be clearly and concisely written, as well as neat, indexed (cross-indexed as appropriate), and logically assembled, as applicable (see table below for details with consideration to page limitations). Pages should be appropriately numbered, and identified with the designation of the RFQ's title, date, and number to the extent practicable. Text shall be no smaller than 11-point font (may be smaller for graphics). Diagrams and exhibits of proposed rooms layouts and designs are acceptable, and can be provided as a separate volume (III) to those listed below, but not to exceed 10 pages.

Component of Quotation Package by Volume		Page Limitation
General (Compliance Requirement)	SF 30 – Solicitation Amendments Acceptance (Page 1 only), as applicable; and Attestation to Solicitation Terms and Conditions and FAR Provisions (Attachment D)	Exempt from Page Limitations
Volume I.a – Technical and Past Performance	Technical Capability (Attachment A) Past Performance Questionnaire (Attachment E)	Exempt from Page Limitations
Volume I.b – Key Personnel	Contractor Résumé Format Submission	NTE 4 Pages; 2 Per Candidate Proposed
Volume II.a – Consent Site Visit	RESERVED Reference HOCL Site Visit Comprehensive Checklist (Attachment F)	Exempt from Page Limitations
Volume II.b – Price	Price/Cost Schedule Template (Attachment G)	Exempt from Page Limitations

Quoters who include in their quotes any data that they do not want disclosed to the public for any purpose or used by the Government except for evaluation purposes, shall identify such areas by clearly indicating such proprietary content.

2.4 Quotation Questions Delivery Instructions

Quoters are encouraged to submit questions to this RFQ in accordance with the table format specified in Attachment K – HOCL Q&A Worksheet via email to Anethra.Facione@occ.treas.gov by **12:00 PM ET on April XX, 2026**. Questions or requests for extension submitted after the Q&A cutoff date will not be

considered. Ensure to reference: ‘Questions to HOCL Support RFQ #2031JW26Q00037’ in the email subject line of the submission.

Questions will not be considered if submitted outside of the submission end time. Any information given to a prospective Quoter concerning this solicitation will be furnished promptly to other prospective Quoters as an amendment to the solicitation.

2.5 Quotation Package Delivery Instructions

Quotation packages must be submitted electronically by 12:00 PM ET on **April XX, 2026** via email to Anethra.Facione@occ.treas.gov. A cover page of the package is not required, however, all Quoters must provide its Unique Entity Identifier and CAGE Code for the property being proposed, along with any additional or exceptions to the Government’s terms and conditions compliance statement, and the name with contact information of the Quoter’s POC. Ensure to reference: ‘Quotation Submission to HOCL Support RFQ # 2031JW26Q00037’ in the email subject line of the quotation package submission.

3.0 EVALUATIONS AND BASIS OF AWARD

This procurement is conducted in accordance with FAR 12 in conjunction with FAR 13.5, on a best value basis that allows for a tradeoff between price and non-price related criteria, under Phase 2 of the evaluation. The procedures of FAR 15 does not apply to this acquisition. The Government reserves the right to contact any Quoter at any point to request additional information regarding its quote. In addition, the Government reserves the right to have discussions/interchanges with any of the Quoters at any point in time (if it is determined to be in the best interest of the Government) or no interchanges at all. Such interchanges would not be considered negotiations as contemplated under FAR subpart 15.3. Quoters are strongly encouraged to submit its best non-price and price responses.

FAR 52.212-2 Evaluation—Commercial Products and Commercial Services (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible Offeror [Quoters] whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following [evaluation] factors shall be used to evaluate offers [quotation packages, as noted in the relative descending order of importance]:

1. Technical Capability,
2. Past Performance,
3. Key Personnel,
4. Site Visit, and
5. Price

All non-price factors, when combined, are more important than price alone.

(b) *Options.* The Government will evaluate offers [quotation packages] for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer [quotation package] is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer [quote], mailed or otherwise furnished to the successful Offeror [Quoter] within the time for acceptance specified in the offer [quotation package],

shall result in a binding contract without further action by either party. Before the offer's [quotation package's] specified expiration time, the Government may accept an offer (or part of an offer) [quote or part of a quotation], whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

3.1 Two-Phase Approach Evaluation Methodology

The criteria, listed in Section B of this solicitation shall be used to evaluate each Quoter's quotation package, which will include the following process and evaluation factors:

Process - Phase One: Technical Capability, Past Performance, and Key Personnel Requirements

The Government intends to evaluate the two of the three evaluation factors (Technical Capability and Key Personnel and Backup) within Phase One as "Go/No-Go". The Past Performance factor will be evaluated on a three-tiered confidence rating: *Substantial Confidence*—which poses low risk and high likelihood the Quoter will be able to perform the requirements successfully and without serious issues; *Satisfactory Confidence*—which poses moderate to low risk, with a reasonable degree of likelihood the Quoter will be able to perform the requirements satisfactorily, with some issues that may require oversight or Government involvement; and *Limited/No Confidence*—which poses a high risk to consider as there is little to no expectation of the Quoter being able of performing the requirements, successfully or satisfactorily. The evaluation factors are listed in descending order of importance, and therefore, if a factor is evaluated as "No-Go" or "No Confidence", the quotation package will stop at that factor and be considered ineligible for award, ultimately not advancing to the next factor or Phase Two.

Process - Phase Two: Site Visit and Price Requirements

The Government intends to evaluate the Site Visit evaluation factor within Phase Two as "Go/No-Go". The Quoter must receive a "Go" rating for the Site Visit evaluation factor in order to advance to the next price factor.

The price quote will be evaluated but not scored. The Government will evaluate the Quoter's proposed pricing contained in the "Price/Cost Schedule" (Attachment G) only.

Quoters must note that if any non-price factor receives a 'No-Go' rating, the Government reserves the right to consider the quotation ineligible for further consideration (including price evaluation) and award.

3.2 Basis of Award

Award will be made in accordance with FAR 12 under FAR 13.5 procedures for the acquisition of commercial products and services using Simplified Acquisition Procedures. The Government intends on conducting evaluations of Quoters' non-price factors, in descending order, and then price factor, of which the total price evaluated must be determined as reasonable and represents the overall best value to the Government. Reasonableness will be based on competitive quotations and other sources (e.g., Government's estimate, historical procurement). Moreover, the Government reserves the right to perform whatever additional price reasonable analysis it might deem necessary. Each non-price factor must yield a 'Go' rating (and for Past Performance, a minimum of a 'Satisfactory Confidence' rating) in order to be considered for price evaluation and award. Formal debriefings will not be conducted; yet, in accordance with FAR 13.106-3(d), a brief explanation to unsuccessful Quoters shall be given, only if requested, of the basis for the contract award decision.

Award will be made to the Quoter who provides the overall best value to the Government.

If it is beneficial to the agency to do so, Quoters will be evaluated more favorably for presenting quotes that offer: 1) conferencing and lodging precisely on or closest to the dates proposed in Section B, Subsection 4.4; 2) concessions that reduce Government costs or increase the overall value; 3) reliable past performance records through valid references; 4) reduce transport needs (near or onsite restaurants or convenience store, near airports identified in Section B, Subsection 4.2 and provides airport shuttle service; and/or 5) special room accommodations (mini fridge(s) and microwaves for the Administration Room).

Basis of Award for Phase One –

The Government will evaluate if the Quoter is fully responsive to all attachments. The Government will assess whether the Quoter clearly described its capability to provide effective and efficient rooms and support services necessary to successfully complete the operational tasks and deliverables specified within this solicitation. The Government will also evaluate the suitability of the Quoter's past performance similar in size (square footage and rooms sizes), scope (conferencing and lodging needs), and complexity (Government regulations, e.g., data protection, per diem rates, Section 508 accessibility) to the current requirements proposed, to determine the likelihood of future success, inherent risk, and/or meeting performance schedules. Additionally, the Government will evaluate the Quoter's proposed candidates to determine whether the individual has the knowledge, skills, and experience in coordinating the requirements identified, focusing on punctuality of service, schedule, and rooms setup delivery.

An answer of "No" will be evaluated as 'No-Go' and the quote will not be evaluated further. Additionally, if the Quoter does not provide supporting evidence as requested in the attachments or as requested, the resulting evaluation rating will be 'No-Go'. Quoters must receive a 'Go' or 'Satisfactory Confidence' rating, as applicable, in the non-price factors of Phase One in order to proceed onward to Phase Two of the evaluation process.

Phase One Non-Price Factors:

- a. **Technical Capabilities (Factor 1):** Technical capability is comprised of two document responses, capabilities and concessions sheet, as well as the solicitation provisions. These documents will be evaluated based on the Quoter's capability to demonstrate its understanding of offering the types of rooms and furnishings, deliverables and services, and personnel and accommodations required as described in Section B of this solicitation, as well as the Quoter's capability of meeting regulatory compliance and applicable contract terms.
- b. **Past Performance (Factor 2):** The Government will evaluate the Quoter's past performance to determine recency and relevancy based on similar occupancies for Government clients requiring lodging, audiovisual, technology, shredding services, as well as food and beverage services within the last 5 years. The Quoter's past performance will be evaluated to assess its reliability, quality, and overall compliance from past Government clients. Any past performance for similar Government support to the requirements identified in Section B of this solicitation must provide details regarding the Quoter meeting specific needs, such as offering per diem rates and layered physical measures, e.g., cameras, security staff, encrypted WiFi, key cards, to demonstrate confidence of repeat success and satisfaction if selected. In the case of a Quoter without a record of relevant past performance or for which past performance is not available, the Quoter will not be evaluated favorably or unfavorably.

- c. **Key Personnel and Backup (Factor 3):** The Government will evaluate the Quoter's proposed Key Personnel candidates' (Primary and Backup) résumés to determine if they meet the four (4) minimum qualifications outlined in Section B, Subsection 6.0 of this RFQ.

Basis of Award for Phase Two –

The Government may elect to invite only the highest technically rated quotes (HTRQ) to participate in the Site Visit factor. This means that a quotation package that receives a 'Go' rating and 'Substantial Confidence' rating would be more likely invited to participate in the Site Visit over a 'Go' rating and 'Satisfactory Confidence' rating. The Quoter must also receive a 'Go' rating for the Site Visit factor in order to be considered for Price evaluation.

Phase Two Non-Price and Price Factors:

- a. **Site Visit (Factor 4):** The Quoter's proposed property will be observed and evaluated for the infrastructure overall safety, security, accessibility, functionality, and technological availability. Additionally, the Government will generally inspect the quality, comfortability, and cleanliness of conference and lodging rooms, public spaces, restaurants, lighting, noise levels, and other interior and exterior layout and designs. The Government will utilize the HOCL Site Visit Comprehensive Checklist (Attachment F) as a guide for the site visit, along with Attachments B and C for referencing and validating room configurations and accommodations offerings, including the types of rooms, fixtures, and furnishings as described in Section B, Subsection 4.0 of this solicitation.
- b. **Price (Factor 5):** The Quoter's pricing will be evaluated to ensure all requested products (e.g., rooms, tables, equipment) and services (e.g., beverage, shredding, audiovisual and technology) are included, and the costs quoted are considered fair, reasonable, balanced. Any proposed concessions, including discounts, offered by the Quoter may be considered to include in the overall total price in terms of best value. Otherwise, the Government may elect not to include optional services or concessions if it is in the best interest of the Government not to do so.